

Manish Keshav Bediya And Ors vs The State Of Maharashtra And Anr on 29 September, 2022

Author: S. M. Modak

Bench: Revati Mohite Dere, S. M. Modak

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SATISH
RAMCHANDRA
SANGAR
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SATISH RAMCHANDRA
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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL WRIT PETITION NO. 3480 OF 2022

Date: 2022.10.01
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1. Mr. Manish Keshav Bediya
2. Mrs. Anita Keshav Bediya
3. Mr. Keshav Patoula Bediya
4. Miss. Nandini Keshav Bediya
5. Miss. Aarti Keshav Bediya ...Petitioners

Versus

1. The State of Maharashtra
2. Mrs. Jyoti Manish Bediya ...Respondents

Mr.Vinod Shukla i/b. Mr.Kshitish Shukla, Advocate for the
Petitioners.

Mrs.A.S.Pai, PP a/w Mr.J.P.Yagnik, APP for the Respondent
No.1-State.

Mr.Devmani Shukla i/b. Mr. Nilesh Mishra, Advocate for the
Respondent No.2.

CORAM : REVATI MOHITE DERE &
S. M. MODAK, JJ.

DATE : 29th SEPTEMBER 2022

P.C. :

1 Heard learned Counsel for the parties.

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2 Rule. Rule is made returnable forthwith, with the

consent of the parties and is taken up for final disposal. Learned Counsel for the respective respondents waive notice on behalf of the said respondents. 3 By this petition, the petitioners seek quashing of the FIR/complaint, registered vide C.R. No. 870 of 2020 with the Charkop Police Station, for the alleged offences punishable under sections 498-A, 323, 504 read with 34 of the Indian Penal Code. Quashing is sought on the premise, that the parties have amicably settled their dispute. 4 Perused the papers. The petitioner no.1 is the husband of respondent no.2, the petitioner nos. 2 and 3 are in-laws and petitioner nos. 4 and 5 are unmarried sisters in-law respectively of the respondent no.2. It appears that applicant no.1 and respondent no.2 got married at Shree Ram Mandir, Khar (East), Mumbai as per Hindu Vedic rites and rituals. It was a love marriage. Admittedly, the couple has no issue. It appears that post marriage, the respondent 28-WP-3480-2022.doc no.2 started residing at her matrimonial house with the petitioners. As there were matrimonial discord / differences, the respondent no.2 lodged the aforesaid C.R. with the Charkop Police Station, alleging the aforesaid offences. We are informed that till date, charge-sheet has not been filed in the said case.

5 It appears that In the interregnum, i.e. after the registration of the FIR, the parties decided to put up a quietus to the dispute and accordingly, entered into consent terms. The said consent terms are at page 34 at Exhibit-C of the petition. The same were filed in the D.V. proceedings i.e. before the learned Additional Chief Metropolitan Magistrate, 24th Court at Borivali, Mumbai. As per the consent terms, both the parties have agreed to file mutual divorce petition under Section 13-B of the Hindu Marriage Act and the respondent no.2 has agreed to withdraw the D.V. proceedings and the present proceedings, at the earliest.

28-WP-3480-2022.doc 6 We are informed that pursuant to the consent terms, the Family Court at Bandra has allowed the petition seeking divorce by mutual consent and has dissolved the marriage vide judgment and order dated 18th July, 2022. 7 Today, the respondent no.2 is present in person. Learned Counsel for the respondent no.2 has tendered a consent affidavit of the respondent no.2 dated 29 th September, 2022, duly affirmed before the Assistant Registrar, High Court. The said affidavit is taken on record. To the said affidavit, is annexed the judgment and order dated 18th July, 2022 passed by the learned Judge, Bandra Court at Bandra, Mumbai, dissolving the marriage of the petitioner no.1 and respondent no.2, by mutual consent under Section 13-B of the Hindu Marriage Act. In the said affidavit, the respondent no.2 has stated that she has received her shridhan and all articles claimed by her and that, she has no objection for quashing of the aforesaid proceeding i.e. C.R. No.870 of 2020 registered with the 28-WP-3480-2022.doc Charkop Police Station.

questioned, she has reiterated what is stated by her in the affidavit, that, she has no objection for quashing of the FIR, bearing C.R. No. 870 of 2020 registered with the Charkop Police Station, Mumbai.

9 Considering the nature of dispute, the relations between the parties and the consent terms entered into between them, the dissolution of their marriage and considering the judicial pronouncements of the Apex Court in Gian Singh vs. State of Punjab & Anr. 1 and Narinder Singh & Ors. vs. State of Punjab & Anr.2, there is no impediment in allowing the petition.

10 The petition is accordingly allowed and the FIR bearing C.R.No.870 of 2020 registered with the Charkop Police Station, Mumbai is quashed and set aside and the 1 (2012) 10 SCC 303 2 (2014) 6 SCC 466 28-WP-3480-2022.doc proceeding, if any, pursuant to the said C.R. is also quashed and set aside.

11 Rule is made absolute in the aforesaid terms. Petition is disposed of accordingly.

12 All concerned to act on the authenticated copy of this order.

S. M. MODAK, J.

REVATI MOHITE DERE, J.